

UMPQUA BANK VS. SABET, ET AL.

CASE NUMBER: 24CV-0205194

Tentative Ruling on Motion to Fix Amount of Attorney's Fees Awardable Pursuant to Summary Adjudication Order: Plaintiff Umpqua Bank seeks an award of attorney's fees and costs. Despite being properly noticed, Defendants Farzad Sabet, an individual, Marikit Del Rosario-Sabet, an individual, and Farzad Sabet and Marikit Del Rosario-Sabet, Trustees of the Sabet 2012 Trust (Sabet Defendants) did not file an Opposition.

There is a Judgment in this matter for Plaintiff and against Defendants on the First and Third Causes of Action. The First Cause of Action is for Breach of Loan Agreement. The loan agreement that formed the basis of the First Cause of Action is the Promissory Note attached as Exhibit A to the Declaration of Lisa E. Spiwak. Page two includes the following paragraph:

ATTORNEYS' FEES; EXPENSES. Lender may hire or pay someone else to help collect this Note if Borrower does not pay. Borrower will pay Lender that amount. This includes, subject to any limits under applicable law, Lender's attorneys' fees and Lender's legal expenses, whether or not there is a lawsuit, including attorneys' fees, expenses for bankruptcy proceedings (including efforts to modify or vacate any automatic stay or injunction), and appeals. Borrower also will pay any court costs, in addition to all other sums provided by law.

Attorney's Fees. Attorney's fees are recoverable where a contract specifically provides that attorney's fees and costs incurred to enforce the contract shall be awarded to either one of the parties. Civ. Code § 1717(a). Here, the Promissory Note includes such a provision. Plaintiff requests attorney's fees in the amount of \$69,750. To support this request, Plaintiff provides as Exhibit B to the Declaration of Lisa E. Spiwak a Detail Fee Transaction File List from Spiwak & Iezza, LLP. This provides detail for 194.10 hours of attorney time spent on this matter since August 12, 2024. The hours appear to be reasonably incurred. No objection has been raised by Defendants. The requested rates start at \$325 per hour and increase to \$400 per hour in June of 2025. The rates are reasonable for Shasta County and no objection has been raised by Defendants.

Costs. The Promissory Note provides that legal expenses are to be paid by the Borrower in addition to court costs. Plaintiff did not file a Memorandum of Costs, however, Plaintiff provided as Exhibit C to the Declaration of Lisa E. Spiwak a Detail Cost Transaction File List from Spiwak & Iezza, LLP. Items on the list total \$10,984.39. Nearly all of the costs appear to be allowable costs pursuant to CCP § 1033.5(a). While there may be some costs that exceed the parameters of CCP § 1033.5(a), the contract between the parties specifically provides for "legal expenses" not just court costs. The Court finds the items listed in Exhibit C to be reasonably incurred legal expenses. No objection has been raised by Defendants.

The motion is **GRANTED**. Attorney's fees are awarded in the amount of \$69,750 and costs/legal expenses are awarded in the amount of \$10,984.39. Plaintiff provided a proposed Order that will be executed by the Court. The Court notes that the matter is presently set for a review hearing on September 21, 2026. Given that a judgment has been entered, the clerk is directed to vacate the September 21, 2026 hearing date and close the file.

WINSELL VS. CITY OF REDDING, ET AL.

CASE NUMBER: 22CV-0200952

Tentative Ruling on Order for Appearance at Judgment Debtor Examination: This matter is on calendar regarding Defendant Tullis, Inc.'s Application and Order for Appearance and Examination. On June 8, 2026, the Court issued an Order to Appear to judgment debtor Ronald Lee Winsell to appear for an examination today. CCP § 708.110(d) requires personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." There is no proof of service on file. Without proof of service on Mr. Winsell, the matter is dropped from calendar.